

Drugs and cosmetics law

Section 3(a)

Title: Definition of Ayurvedic, Siddha or Unani Drug

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Act, 1940, Section 3(a)

Plain English Summary:

This provision defines an Ayurvedic, Siddha or Unani drug as a medicine intended for internal or external use in humans or animals for the diagnosis, treatment, mitigation or prevention of disease or disorder. It must be manufactured exclusively according to the formulae described in the authoritative books of these systems of medicine specified in the First Schedule. For an Ayurvedic startup or researcher, this definition helps determine whether a product falls within the statutory category of an Ayurvedic drug and whether its formulation is based on an authoritative text.

The Exact Legal Text:

3. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Ayurvedic, Siddha or Unani drug" includes all medicines intended for internal or external use for or in the diagnosis, treatment, mitigation or prevention of disease or disorder in human beings or animals, and manufactured exclusively in accordance with the formulae described in, the authoritative books of Ayurvedic, Siddha and Unani Tibb systems of medicine, specified in the First Schedule;

Keywords/Triggers:

Ayurvedic drug definition, classical Ayurvedic medicine, authoritative books, First Schedule, Ayurvedic formulation, statutory drug category, internal external medicine, Ayurvedic startup

Section 3(h)(i)

Title: Definition of Patent or Proprietary Medicine

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Act, 1940, Section 3(h)(i)

Plain English Summary:

This provision defines a patent or proprietary medicine for the Ayurvedic, Siddha or Unani systems as a formulation containing only ingredients mentioned in the formulae described in the authoritative books specified in the First Schedule. It excludes medicines administered by the parenteral route and formulations already included in those authoritative books as described in Section 3(a). For an Ayurvedic startup or researcher, this definition helps distinguish a patent or proprietary medicine from a classical formulation and supports the initial regulatory classification of a product.

The Exact Legal Text:

(h) "patent or proprietary medicine" means,—

(i) in relation to Ayurvedic, Siddha or Unani Tibb systems of medicine all formulations containing only such ingredients mentioned in the formulae described in the authoritative books of Ayurveda, Siddha or Unani Tibb systems of medicine specified in the First Schedule, but does not include a medicine which is administered by parenteral route and also a formulation included in the authoritative books as specified in clause (a);

Keywords/Triggers:

patent proprietary medicine, Ayurvedic formulation classification, classical formulation, First Schedule, authoritative books, parenteral route, proprietary Ayurvedic medicine, regulatory classification

Section 8

Title: Standards of Quality for Drugs and Cosmetics

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Act, 1940, Section 8

Plain English Summary:

This section explains that imported drugs must meet the prescribed standards of quality. For an Ayurvedic startup, this means that medicines must satisfy the quality requirements mentioned in the applicable official standards, such as the Ayurvedic Pharmacopoeia of India. Researchers and manufacturers must ensure that the drug is genuine, safe, and of the required quality before it is marketed.

The Exact Legal Text:

The standards of quality for imported drugs shall be the standards prescribed in the Second Schedule. The standards of quality for imported cosmetics shall be such as may be prescribed.

Keywords/Triggers:

Drug quality standards, Second Schedule, imported Ayurvedic drugs, pharmacopoeial standards, drug purity and strength, quality requirements, Ayurvedic medicine standards, drug compliance.